



CHAPTER 67

An Act to confer powers to meet deficiencies in the supply of water due to exceptional shortage of rain and to revoke, with savings, Defence Regulations 50A and 56. [1st August, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If the Minister is satisfied that by reason of an exceptional shortage of rain a serious deficiency of supplies of water in any locality exists or is threatened, he may, subject to the provisions of this section, on the application of any statutory water undertakers who supply water in that locality, make an order containing such provisions for any of the following purposes as appear to him to be expedient with a view to meeting the deficiency, that is to say—

- (a) for authorising the undertakers, subject to any specified conditions or restrictions, to take water from any specified source for a period not exceeding six months, or
- (b) for suspending or modifying, subject to any specified conditions, and for a period not exceeding six months, any restriction or obligation to which the undertakers are subject as respects—
 - (i) the taking of water from any source,
 - (ii) the discharge of compensation water, or
 - (iii) the filtration or other treatment of water,

and the Minister may include in the order such supplemental, incidental and consequential provisions as appear to him to be expedient for those purposes.

Before any statutory water undertakers make an application under this section they shall consult with any river board upon whom notice of the application will be required to be served by the First Schedule to this Act.

(2) In an order made under paragraph (a) of the foregoing subsection for authorising the taking of water from a source from which water is supplied to an inland navigation, or in an order made under paragraph (b) of the foregoing subsection—

(a) for suspending or modifying a restriction as respects the taking of water from a source from which water is supplied to an inland navigation, or

(b) for suspending or modifying an obligation to discharge compensation water into a canal or into any river or stream which forms part of, or from which water is supplied to, an inland navigation,

the Minister may include provisions for prohibiting or imposing limitations on the taking of water from the inland navigation or for the suspension or modification of any obligation to which the navigation authority are subject as respects the discharge of water from the inland navigation.

(3) An order under this section may authorise undertakers, subject to any specified conditions and restrictions, to execute any works required for the discharge of their functions under the order and—

(a) may authorise the undertakers for that purpose to enter upon any specified land and to occupy and use the land to such extent and in such manner as may be requisite for the execution and maintenance of the works, and

(b) may authorise the undertakers to borrow temporarily any money required to defray the cost of carrying out the works, and

(c) may apply in relation to the execution of the works such of the provisions contained in the Third Schedule to the Water Act, 1945 (which include in particular provisions relating to the laying of mains and the breaking open of streets), as appear to the Minister to be appropriate, subject to such modifications and adaptations as may be specified in the order.

(4) In an order which authorises undertakers to enter on land the Minister shall include provisions requiring the undertakers to give to the occupier of the land, and to such other persons concerned with the land as may be specified in the order, not less than seven days' notice of their intended entry on the land.

(5) In the exercise of his power to make orders under this section the Minister shall have regard to the interests of all persons concerned in the conservation or use of the water to which the order relates.

(6) An order under this section shall not authorise the doing of anything contrary to the provisions of section one hundred and sixty-two of the Thames Conservancy Act, 1932 (which empowers the Metropolitan Water Board to abstract water from the Thames subject to the conditions set out in the section).

(7) The provisions of the First Schedule to this Act shall have effect in relation to the procedure to be followed in connection with the making of orders under the preceding provisions of this section, and the provisions of the Second Schedule to this Act shall have effect with respect to the payment of compensation to persons affected by orders so made.

(8) The Minister may by order revoke any order made by him under this section.

(9) If statutory water undertakers—

(a) take water from a source in contravention of a restriction contained in an order under this section or fail to comply with the requirements of an order under this section as to the discharge of compensation water, or

(b) fail to construct or maintain in good order a gauge, weir or other apparatus for measuring the flow of water which they were required to construct or maintain by an order under this section, or fail to allow some person authorised in that behalf by any such order to inspect and examine any such apparatus or any records made thereby or kept by the undertakers in connection therewith or to take copies of any such records,

they shall, without prejudice to their civil liability, if any, to a person aggrieved, be liable—

(i) on summary conviction of an offence under paragraph (a) or paragraph (b) of this subsection, to a fine not exceeding one hundred pounds; and

(ii) on conviction on indictment of an offence under paragraph (a) of this subsection, to a fine.

(10) In the application of this section to Scotland, for any reference to the Third Schedule to the Water Act, 1945, there shall be substituted a reference to sections twenty-six and twenty-seven of, and the Third and Fourth Schedules to, the Water (Scotland) Act, 1946.

2.—(1) If the Minister is satisfied that by reason of an exceptional shortage of rain a serious deficiency of supplies of water in any locality exists or is threatened, he may, on the application of any statutory water undertakers who supply water in that locality, make an order containing such provisions for

Supplying water by temporary means during a drought.

any of the following purposes as appear to him to be expedient with a view to meeting the deficiency, that is to say—

- (a) for authorising the undertakers for a period not exceeding six months to supply water in any area within their limits of supply by means of stand-pipes or water tanks, and to erect or set up and maintain stand-pipes or water tanks in any street in that area,
- (b) for confirming any right to raise, charge and levy any water rate or minimum charge which might have been raised, charged and levied if there had been no interruption or diminution of the supply of water and for suspending or modifying any enactment or agreement so far as it relates to a failure to make normal supplies of water available in an area where water is being supplied by means of stand-pipes or water tanks, and
- (c) for applying in relation to any works to be carried out under the order such of the provisions contained in the Third Schedule to the Water Act, 1945, as appear to the Minister to be appropriate, subject to such modifications and adaptations as may be specified in the order.

(2) Any works to be carried out in the course of erecting or setting up stand-pipes or water tanks under this section shall be included in the definition of emergency works in subsection (1) of section thirty-nine of the Public Utilities Street Works Act, 1950.

(3) The provisions of the First Schedule to this Act shall have effect in relation to the procedure to be followed in connection with the making of orders under the preceding provisions of this section.

(4) The Minister may by order revoke any order made by him under this section.

(5) In the application of this section to Scotland, for any reference to the Third Schedule to the Water Act, 1945, there shall be substituted a reference to sections twenty-six and twenty-seven of, and the Third and Fourth Schedules to, the Water (Scotland) Act, 1946.

Revocation
of Defence
Regulation
50A and 56.

3.—(1) Subject to the provisions of this section, Regulations 50A and 56 of the Defence (General) Regulations, 1939 (which respectively authorise the taking of water from any source and permit the making of higher or additional charges and other relaxations of statutory obligations or limitations on public utility undertakings) are hereby revoked.

(2) Any order under either of the said Regulations which is in force immediately before the coming into operation of this section shall, unless previously revoked by an order of the Minister under this section, continue to apply as if the Regulation had until the

thirty-first day of March, nineteen hundred and sixty, continued in force, and the provisions of Regulation 50A concerning compensation shall continue to apply in relation to any order under that Regulation.

(3) This section shall not affect any order under Regulation 56 so far as it is continued in force by paragraph (a) or (b) of the proviso to subsection (1) of section eight of the Transport Charges, &c. (Miscellaneous Provisions) Act, 1954.

(4) This section shall extend to Northern Ireland.

4.—(1) In this Act, except where the context otherwise Interpretation. requires—

“compensation water” means water which any statutory water undertakers are under an obligation to discharge into a river, stream, brook or other running water or into a canal as a condition of carrying on their undertakings;

“inland navigation” includes any canal or navigable river;

“the Minister” means, as respects England and Wales, the Minister of Housing and Local Government and, as respects Scotland, the Secretary of State;

“obligation” includes an obligation imposed by agreement and “restriction” has a corresponding meaning;

“river purification authority” has the meaning assigned to it by the Rivers (Prevention of Pollution) (Scotland) Act, 1951;

“take”, in relation to water, includes the collection, impounding, diversion and appropriation of water;

and section fifty-nine of the Water Act, 1945, or, as the case may be, section eighty-four of the Water (Scotland) Act, 1946, shall apply for the interpretation of other expressions defined by those sections and used in this Act.

(2) Any reference in this Act to a river board includes a reference to the Conservators of the River Thames and the Lee Conservancy Catchment Board, and any reference to the area of a river board shall, in relation to the Conservators of the River Thames, be construed as a reference to the Thames catchment area.

(3) In the application of this Act to Scotland, for any reference to statutory water undertakers there shall be substituted a reference to a local water authority, and for any reference to a river board there shall be substituted a reference to a river purification authority and a fishery district board.

(4) Any power of making orders under this Act shall be exercisable by statutory instrument and shall include power—

(a) from time to time to extend a period specified in a previous order, but not so as to extend beyond a year any period which under this Act is not to exceed six months,

(b) to vary a previous order in any other respect.

(5) Any reference in this Act to any enactment is a reference to that enactment as amended by or under any Act.

Expenses.

5. There shall be paid out of moneys provided by Parliament—

(a) any administrative expenses incurred by the Minister of Housing and Local Government or the Secretary of State in consequence of the passing of this Act, and

(b) any increase attributable to the provisions of this Act in the sums payable out of moneys so provided under Part I of the Local Government Act, 1948, or the Local Government (Financial Provisions) (Scotland) Act, 1954, as amended by the Valuation and Rating (Scotland) Act, 1956.

**Short title,
extent and
commence-
ment.**

6.—(1) This Act may be cited as the Water Act, 1958.

(2) Save as otherwise expressly provided, this Act shall not extend to Northern Ireland.

(3) This Act shall come into force at the expiration of one month beginning with the date of its passing.

SCHEDULES

FIRST SCHEDULE

Sections 1, 2

PROCEDURE FOR MAKING ORDERS

1.—(1) The applicants for an order under section one or section two of this Act shall cause notice in writing of the application to be served on the persons specified in the following Table—

All orders	(a) Every local authority whose area lies wholly or partly within the limits of supply of the applicants. (b) Such statutory water undertakers, if any, as the Minister may direct.
Orders which suspend or modify an enactment.	Such persons (if any) as are specified by name in the enactment as being persons for whose protection it was enacted.
Orders which suspend or modify an agreement.	The parties to the agreement other than the applicants.
Orders concerning the taking of water from a source or the discharge of compensation water.	(a) Every local authority and river board in whose area the source, or the site at which compensation water is to be discharged, is situated. (b) Any navigation authority exercising functions over any water-course affected by the order.
Orders which authorise the execution of any works.	(a) Every local authority within whose area the works are situated. (b) If the order authorises the execution of works in, under or over a watercourse, the river board, and any other drainage authority within the meaning of the Land Drainage Act, 1930, within whose area the works, or any part of the works are situated.
Orders which authorise the occupation and use of land.	Every owner, lessee and occupier of the land.
Orders which prohibit or limit the taking of water from an inland navigation.	Any named persons to whom the prohibition or limitation applies.

1ST SCH.
—cont.

(2) The applicants shall also cause a notice of the application to be published—

- (a) in one or more local newspapers circulating within the limits of supply of the applicants, and
- (b) in one or more local newspapers circulating within the limits of supply of any other statutory water undertakers on whom notice is to be served in accordance with the foregoing Table, and
- (c) where the application is for an order concerning the taking of water from a source or the discharge of compensation water, in one or more local newspapers circulating within the area of every local authority within whose area the source or the site at which compensation water is to be discharged is situated.

(3) Where the application is for an order under section one of this Act the applicants shall in addition to the notices specified in the last foregoing sub-paragraph cause a notice of the application to be published in the London Gazette.

(4) A notice under this paragraph—

- (a) shall state the general effect of the application, and
- (b) shall specify a place within the limits of supply of the applicants where a copy of any relevant map or plan may be inspected by any person free of charge at all reasonable hours within a period of seven days from the date on which it is served or, in the case of publication of a notice in pursuance of any of the foregoing provisions of this paragraph, from the date of the publication, and
- (c) shall state that objections to the application may be made to the Minister within seven days from the date on which it is served or, in the case of publication of a notice in pursuance of any of the foregoing provisions of this paragraph, from the date of the publication, and
- (d) in the case of an application for an order authorising the occupation and use of land, shall specify the land to which the application relates.

(5) In the application of this paragraph to Scotland a reference to the Edinburgh Gazette shall be substituted for the reference to the London Gazette.

2. A notice which is required under this Schedule to be served on any person may be served either—

- (a) by delivering it to the person on whom it is to be served, or
- (b) by leaving it, or sending it in a pre-paid letter addressed to that person, at his usual or last-known residence, or
- (c) in the case of an incorporated company or body, by delivering it to their clerk or secretary at their registered or principal office, or by sending it in a pre-paid letter addressed to him at that office, or

- (d) in the case of a notice to be served on a person as being the owner of any land by virtue of the fact that he receives the rack rent thereof as an agent for another, or would so receive it if the land was let at a rack rent, by leaving it, or sending it in a pre-paid letter addressed to him, at his place of business, or
- (e) in the case of a notice to be served on the owner, lessee or occupier of any land, if it is not practicable after reasonable inquiry to ascertain the name and address of the person on whom it should be served, or if the land is unoccupied, by addressing it to the person concerned by the description of "owner", "lessee" or "occupier" of the land (describing it) to which it relates, and delivering it to some person on the land, or if there is no person on the land to whom it can be delivered, by fixing it, or a copy of it, to some conspicuous part of the land.

1ST SCH.
—cont.

3.—(1) If any objection is duly made with respect to the application and is not withdrawn, then, subject to the provisions of this paragraph, the Minister shall before making the order either cause a public local inquiry to be held or afford to any person by whom any objections have been duly made and not withdrawn an opportunity of appearing before and being heard by a person appointed by the Minister for the purpose, and if any person by whom an objection has been made avails himself of the opportunity of being heard, the Minister shall afford to the applicant for the order, and to any other persons to whom it appears to the Minister expedient to afford it, an opportunity of being heard on the same occasion.

(2) Notwithstanding anything in sub-paragraph (1) of this paragraph, the Minister may require any person who has made an objection to state in writing the grounds thereof, and may disregard the objection for the purposes of this paragraph if the Minister is satisfied—

- (a) that the objection relates exclusively to matters which can be dealt with on a reference under the Second Schedule to this Act or by any person by whom compensation is to be assessed, or
- (b) in a case where the order is one confined to the extension of a period specified in a previous order, that the objection is one that has in substance been made with respect to the application for that previous order.

(3) Subject to the requirements of this paragraph, the Minister, upon being satisfied that the proper notices have been published and served, may, if he thinks fit, make the order in respect of which the application is made with or without modifications.

(4) The Minister may hold a public local inquiry on any application for an order under this Act notwithstanding that he is not required to do so by this paragraph and the provisions of section two hundred and ninety of the Local Government Act, 1933, shall apply to an inquiry under this paragraph but subject to the modification that the reference in subsection (4) of that section to a local authority shall be construed as including a reference to any statutory water undertakers concerned in the inquiry.

1ST SCH.
—cont.

(5) In the application of this paragraph to Scotland, the reference to section two hundred and ninety of the Local Government Act, 1933, shall be omitted and section seventy-three of the Water (Scotland) Act, 1946, shall apply in relation to any inquiry under this paragraph as it applies in relation to an inquiry under any provision of the First Schedule to that Act.

4. After an order under this Act has been made, the water undertakers on whose application it was made shall cause to be published (in the manner in which notice of the application was required under sub-paragraphs (2) and (3) of paragraph 1 of this Schedule to be published) a notice stating that the order has been made and naming a place where a copy thereof may be inspected.

Section 1.**SECOND SCHEDULE****COMPENSATION FOR THE TAKING OF WATER OR
OCCUPATION OF LAND**

1.—(1) Compensation in respect of the following matters, that is to say—

- (a) the taking of water from a source under the authority of an order made under section one of this Act,
- (b) the taking, under the authority of such an order, of water from a source otherwise than in accordance with a restriction which has been suspended or modified by the order,
- (c) the entry upon or occupation or user of land under the authority of such an order,

shall be made by the undertakers in relation to whom the order is made to the owners and occupiers of, and all other parties interested in, the source or land, as the case may be, or injuriously affected by the taking of the water or by the entry upon or occupation or user of the land, as the case may be, for damage sustained by them by reason of the matters aforesaid.

(2) Compensation shall be made by the undertakers in relation to whom an order is made prohibiting, or imposing a limitation on, the taking of water from an inland navigation, to the persons to whom the prohibition or limitation applies, for damage sustained by them by reason of the prohibition or limitation.

(3) In assessing compensation to be made under paragraph (a) or paragraph (b) of sub-paragraph (1) of this paragraph or under sub-paragraph (2), the Lands Tribunal may, if it thinks fit, have regard to the amount of water which, on an equitable apportionment of the water available from the source between the claimant, the undertakers and other persons taking water from the source, might fairly be apportioned to the claimant.

2.—(1) Compensation shall be made by the undertakers in relation to whom an order is made suspending or modifying an obligation as respects the taking of water from a source, or as respects the discharge of compensation water, to persons who but for the order would have

been entitled to institute proceedings in respect of a failure to comply with the obligation, for damage sustained by them by reason of water being taken without compliance with the obligation, or of compensation water not being discharged, or being discharged otherwise than in accordance with the obligation.

2ND SCH.
—cont.

(2) In assessing compensation to be made under this paragraph the Lands Tribunal may, if it thinks fit, have regard to the amount of water which, under the conditions existing by reason of the shortage of rain, would have been available to the claimant during the period during which the deficiency of supplies of water is continued, if the undertaking in relation to which the obligation was imposed had never been carried out.

3.—(1) A claim for compensation under this Schedule shall be made by serving upon the undertakers a notice in writing stating the grounds of the claim and the amount claimed.

(2) A claim for compensation under this Schedule may be made at any time not later than three months after the end of the period for which the order authorises the taking of water or, as the case may be, suspends or modifies the restriction or obligation in question.

(3) Any question as to the right of a claimant to recover compensation, or as to the amount of compensation recoverable, shall in default of agreement be referred to, and determined by, the Lands Tribunal.

(4) Where a claim is made during the continuance of an order, the Lands Tribunal may, if it thinks fit, award a sum representing the damage which is likely to be sustained by the claimant in respect of each day on which water is taken, or is taken otherwise than in accordance with a restriction or obligation, or on which compensation water is not discharged or is discharged otherwise than in accordance with an obligation, or on which a prohibition or limitation on the taking of water is in effect, as the case may be.

4.—(1) In the application of this Schedule to Scotland, for any reference to the Lands Tribunal there shall be substituted a reference to the Lands Tribunal for Scotland:

Provided that until sections one to three of the Lands Tribunal Act, 1949, come into force as regards Scotland, this paragraph shall have effect as if for the reference to the Lands Tribunal for Scotland there were substituted a reference to an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919; and sections three, five and six of that Act shall apply, subject to any necessary modifications, in relation to the determination of any question under this Schedule by an arbiter so appointed.



Table of Statutes referred to in this Act

Short Title	Session and Chapter
Aquisition of Land (Assessment of Compensation)	
Act, 1919	9 & 10 Geo. 5. c. 57.
Land Drainage Act, 1930	20 & 21 Geo. 5. c. 44.
Thames Conservancy Act, 1932	22 & 23 Geo. 5. c. xxxvii.
Local Government Act, 1933	23 & 24 Geo. 5. c. 51.
Water Act, 1945	8 & 9 Geo. 6. c. 42.
Water (Scotland) Act, 1946	9 & 10 Geo. 6. c. 42.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Public Utilities Street Works Act, 1950	14 Geo. 6. c. 39.
Rivers (Prevention of Pollution) (Scotland) Act, 1951	14 & 15 Geo. 6. c. 66.
Local Government (Financial Provisions) (Scotland) Act, 1954	2 & 3 Eliz. 2. c. 13.
Transport Charges, &c. (Miscellaneous Provi- sions) Act, 1954	2 & 3 Eliz. 2. c. 64.
Valuation and Rating (Scotland) Act, 1956 ...	4 & 5 Eliz. 2. c. 60.

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